



Province of Alberta

PROTECTION FOR PERSONS IN CARE ACT

PROTECTION FOR PERSONS IN CARE REGULATION

Alberta Regulation 97/2010

With amendments up to and including Alberta Regulation 199/2025

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Office Consolidation

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Alberta King's Printer
Suite 700, Park Plaza
10611 - 98 Avenue
Edmonton, AB T5K 2P7
Phone: 780-427-4952

E-mail: kings-printer@gov.ab.ca
Shop on-line at kings-printer.alberta.ca

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(Consolidated up to 199/2025)

ALBERTA REGULATION 97/2010

Protection for Persons in Care Act

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Definition

- 1** In this Regulation, “Act” means the *Protection for Persons in Care Act*, SA 2009 cP-29.1.

Prescribed Act

- 2** The *Health Disciplines Act* is prescribed for the purposes of sections 1(4)(c) and 7(4) of the Act.

Designated service providers

- 3** The following persons are designated as service providers for the purpose of section 1(1)(m) of the Act:
- (a) repealed AR 22/2024 s21;
 - (b) a person that provides care or support services, other than family-managed supports, to individuals with developmental disabilities and receives funding under the *Persons with Developmental Disabilities Community Governance Act* for the provision of those services;
 - (c) a person that provides day programs, residential and care or support services funded by a provincial health agency, regional health authority or provincial health corporation as defined in the *Provincial Health Agencies Act*, including, without limitation, addictions and mental health treatment and rehabilitation centres.

AR 97/2010 s3;22/2024;125/2024;199/2025

Circumstances not constituting abuse

4 For the purpose of section 1(3)(e) of the Act, the following circumstances do not constitute abuse:

- (a) decisions made by a guardian or trustee under the *Adult Guardianship and Trusteeship Act*;
- (b) decisions made by a review panel under the *Mental Health Act*;
- (c) decisions made by a person described in section 28(1) of the *Mental Health Act*;
- (d) actions taken under the *Emergency Medical Aid Act*.

Expiry

5 For the purpose of ensuring that this Regulation is reviewed for ongoing relevancy and necessity, with the option that it may be repassed in its present or an amended form following a review, this Regulation expires on June 30, 2028.

AR 97/2010 s5;50/2015;17/2018;263/2022

Coming into force

6 This Regulation comes into force on the coming into force of section 26 of the Act.



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